



File No.: EXP202305856

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Spanish Agency for Data Protection has become aware of certain facts that could constitute a possible infringement attributable to A.A.A. (hereinafter, the respondent).

The facts brought to the attention of this authority are:

The complainant states that they are a neighbor of the respondent, residing at ***ADDRESS.1, and that the respondent has installed a camera above the access door to their home which, due to its location and orientation, is capable of capturing images of the community hallway on the first floor, common areas, and the entrance portal to their home (...).

Along with their written submission, they provide photographs showing the location of a camera above the entrance door of a residence, in the community hallway of the floor. Below the camera is the identifying letter "C," corresponding to the letter assigned to the residence in question. The photographs indicate that the orientation of the camera allows for the capture of common areas.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on two occasions, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was unsuccessful:

The first attempt to forward was made on May 8, 2023, resulting in "Absent." It was "Returned to Origin due to Surplus (Not collected at the office)" on May 18, 2023, according to the delivery impossibility certification in the file.

The second attempt was made on May 31, 2023, resulting in "Absent." It was "Returned to Origin due to Surplus (Not collected at the office)" on June 8, 2023, according to the delivery impossibility certification in the file.

THIRD: On August 10, 2023, the Director of the Spanish Agency for Data Protection agreed to archive the complaint. However, on August 11, 2023, the complainant submitted an optional appeal for reconsideration against the archiving resolution in the terms provided by Articles 123 and following of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP).

FOURTH: On October 31, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, was made through an announcement published in the Official State Gazette on November 28, 2024, after prior notification by postal means proved unsuccessful. Specifically, it is recorded in the file that two notification attempts were made at the respondent's address on November 11 and 14, 2024, at 12:19 hours and 20:38 hours, respectively. As the respondent was absent, a notice was left in the mailbox. Finally, on November 22, 2024, it is recorded as "returned due to surplus. Not collected at the office."

SIXTH: Once the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this proceeding,

PROVEN FACTS

FIRST: The respondent has installed a camera above the access door to their residence located at ***ADDRESS.1.

SECOND: The location and orientation of the camera allow for the capture of images of the community hallway where the residences of the complainant and respondent are located.

THIRD: The responsible party for the camera is the respondent.

LEGAL GROUNDS

I

Competence

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In accordance with the provisions established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction."

Images captured by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

The party being claimed against carries out the processing of personal data in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

It is therefore pertinent to analyze whether the processing of personal data (possible images of other property owners or third parties accessing the property) carried out through the video surveillance system of the party being claimed against is in accordance with the provisions established in the GDPR.

III

Regulations on the protection of personal data

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD states that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities. Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the

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information indicated in Articles 13 and 14 of the GDPR. In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visibly public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment. This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. In the event that the monitored space has several access points, such a distinctive sign indicating a video-monitored area must be placed at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the rest of the principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed at. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Bodies.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose. That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

Y, in such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities. Under no circumstances shall the use of surveillance practices be permitted beyond the environment subject to the installation and, in particular, it must not affect the surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area. Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms,

lockers, or rest areas for workers.

The capture of images in common areas or elements of communities of property owners requires the agreement of the owners' meeting in the terms provided for in Law 49/1960, of July 21, on horizontal property (hereinafter LPH). Once this requirement is met, the community of property owners, as the data controller, will be subject to the remaining obligations imposed by data protection regulations. The cameras may only capture the common areas of the community, and recording images of public roads is not feasible, except for a minimal strip of the accesses to the property. Images of adjacent land and homes or any other external space may not be captured. In this latter case, if adjustable and/or zoom cameras are used, the installation of privacy masks will be necessary to prevent such recording. The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the community from complying with data protection legislation.

IV

Obligations regarding video surveillance

Furthermore, the processing of images through a video surveillance system, in order to comply with current regulations (Article 22 of the LOPDGDD), must meet the following specific requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities. It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot be reasonably achieved by other means, considering Article 39 of the GDPR.

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2.- The images obtained may not be used for any ulterior purpose incompatible with the reason that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled. In this regard, a "layered information" system is foreseen in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information will be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is acquired.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided that there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum of 72 hours. A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the

unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

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The Spanish Agency for Data Protection offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section “Guides and tools”).

It is also of interest, in cases of low-risk data processing, the free tool Facilita (in the section “Guides and tools”), which, through specific questions, allows the data controller to assess their situation regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

In this case, after analyzing the content of the complaint submitted, it is noted that there is a video surveillance camera at the entrance door to the residence of the complained party, located on the first floor of a horizontally owned building. The location and orientation of the camera allow for excessive capture of personal data, as it is not directed towards the entrance door of the residence of the complained party, but rather towards the common areas.

V

Classification and qualification of the administrative infringement

In accordance with the evidence available, it is considered that the complained party has committed an infringement of the data minimization principle provided in Article 5.1 c) of the GDPR, which states that personal data shall be: “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount: (...)

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;.”

For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Infringements considered very serious.

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1. In accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

a) "The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

For its part, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall be archived. The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

In the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of the violated articles.

VII

Adoption of measures

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Having confirmed the infringement, it is agreed to impose on the controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe..."

In light of the above, this Agency requires the controller to, within one month:

- Certify that they have reoriented the camera towards the entrance door of their home, avoiding the capture of common areas or elements of the property. If the reorientation is insufficient to avoid capturing common areas or elements, they must certify the removal of it, unless they obtain authorization from the homeowners' association.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to certify that they have adopted the measures established in the legal basis VII.

THIRD: TO NOTIFY this resolution to A.A.A..

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the

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the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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